

Summary of the Report of the Judiciary Reform Commission *(English Version)*

NB. The Report along with a Summary in Bangla was submitted on the 31 January 2025

Members of the Judiciary Reform Commission

- | | | |
|----|---|-----------------|
| 1. | Mr. Justice Shah Abu Nayeem Mominur Rahman
<i>Former Judge, Appellate Division, Supreme Court of Bangladesh</i> | Commission Head |
| 2. | Mr. Justice Md. Emdadul Huq
<i>Former Judge, High Court Division, Supreme Court of Bangladesh</i> | Member |
| 3. | Mr. Justice Md. Farid Ahmed Shibli
<i>Former Judge, High Court Division, Supreme Court of Bangladesh</i> | Member |
| 5. | Mr. Md. Masder Hossain
<i>Former Judge, District & Sessions Judge Court</i> | Member |
| 4. | Mr. Syed Aminul Islam
<i>Former District & Sessions Judge and Former Registrar General, Bangladesh Supreme Court</i> | Member |
| 6. | Mr. Quazi Mahfujul Hoque Supan
<i>Associate Professor, Department of Law, University of Dhaka</i> | Member |
| 7. | Mr. Tanim Hussain Shawon
<i>Barrister-at-Law
Advocate, Bangladesh Supreme Court</i> | Member |
| 8. | Mr. Arman Hossain
<i>Student, Department of Law, University of Dhaka</i> | Member |

NB. The Commission was constituted by the Cabinet Division Notification No. SRO-331-Law/2024 Dated 03.10.2024

Summary of the Report of the Judiciary Reform Commission

1. Supreme Court Judges' Appointment and Discipline

1.1 Making provisions in the constitution to the effect that the senior-most Judge of the Appellate Division shall be appointed as the Chief Justice.

1.2 The views of the Chief Justice shall prevail in fixing the number of judges to be appointed in both Divisions of the Supreme Court of Bangladesh.

1.2 To ensure transparency in the process of appointment of the Judges of the Supreme Court, a law is to be enacted for establishment of a Commission to be called the "Supreme Court Judges Appointment Commission" consisting of nine members, including the Chief Justice as the Chairperson.

1.3 The Commission to invite application, select and recommend suitable applicants for appointment as Judges of the Supreme Court in accordance with the said law and the President is to make appointments accordingly.

1.4 The Supreme Judicial Council is to frame and publish a Code of Conduct for the Judges of the Supreme Court, both serving and retired, and also for other state functionaries, who are removable only in the manner applicable to a Supreme Court Judge.

1.5 The Supreme Judicial Council shall have powers to initiate proceedings against a Judge of the Supreme Court or other functionary, at the request of the President and also to initiate such proceedings on its own.

2. Appointment of Judges in the Subordinate Courts and Conditions of their Service

Appropriate actions are to be taken for the following purposes:

- Constituting the Pay Commission under the Bangladesh Judicial Service (Pay Commission) Rules, 2007 for making recommendations of a new pay-scale and other benefits for the Judges of the subordinate courts.
- Framing a Code of Conduct for those Judges.
- Preparing guidelines for regulating their transfer from one workplace to another.
- Taking appropriate steps for upholding the dignity and status (in formal settings and ceremonies) of the Judges of the subordinate courts.

3. Establishment of a Separate Supreme Court Secretariat

A Supreme Court Secretariat is to be established for the following purposes:

- For ensuring and effectively implementing the control of the Supreme Court instead of the existing executive control in the matters of transfer, promotion, grant of leave and discipline of the judges of the subordinate courts.

The following amendments to the constitution and subordinate legislation will be necessary:

- Amending Article 116 of the Constitution so as to establish the control of the Supreme Court over the Judges of subordinate courts.
- Amending the relevant service rules applicable to the judges of the subordinate courts.
- Amending Article 113 of the Constitution.
- Amending Article 88 of the Constitution so that the expenditures relating to the salary of the Judges and staff of the subordinate courts are added to the list of the charge upon the consolidated fund of the State.

4. Decentralization of the Judiciary

4.1 Amending Article 100 of the Constitution for establishing permanent benches of the High Court Division at each administrative Division of the country. However, the proposed amendment is to be made in such a way that neither the unitary character of the State nor the plenary jurisdiction of the High Court Division over the entire territory of Bangladesh is affected because of the establishment of said permanent benches.

4.2 Establishing Courts of Senior Assistant Judges and Senior Judicial Magistrates at such upazila (sub-district) headquarters as will be determined upon consideration of the location, distance from the district headquarters, communication facilities, demographic situation, the number of pending cases and other relevant factors.

5. Permanent Government Attorney Service

5.1 Enacting a law for establishing a permanent Government Attorney Service for representing government interest in all types of cases (criminal and civil) in the Supreme Court and subordinate courts. The proposed law will prescribe the organizational structure, appointment procedure, promotion, transfer, disciplinary action, salary structure, available benefits, and other related matters.

5.2 The proposed Attorney Service shall be a pensionable government service. The law will, apart from the matters mentioned in para 5.1, prescribe the arrangement for adequate infrastructure, allocation of sufficient budget, and appointment of support staff.

5.3 The proposed Attorney Service will have two units: a) the Supreme Court Unit, comprising the ranks of Assistant Attorney General, Deputy Attorney General, and Additional Attorney General, and b) the District Unit, comprising the ranks of Assistant District Attorney, Senior Assistant District Attorney, Joint District Attorney, Additional District Attorney, and District Attorney.

5.4 To ensure smooth transition, the proposed law will contain provisions to the effect that during the transitional period, the existing law officers will continue, with necessary adjustments, to function till full implementation of the proposed scheme.

5.5 To ensure that the members of the Attorney Service can carry out their duties free from political influences, the law will provide that they cannot be removed from the service without the sanction of an independent commission (which may be called the ‘Assistance to Justice Commission’.)

6. President’s prerogative of mercy

Article 49 of the Constitution is to be amended, and a law is to be enacted for the purpose of establishing a ‘Mercy Board’ which is to follow specified principles on an objective basis and make recommendations for granting mercy by the President to a person convicted and sentenced by a Court. The proposed amendment will rationalize the existing arbitrary and non-transparent system of granting mercy by the President on the advice of the executive.

7. Independent Criminal Investigation Service (CIS)

7.1 Enacting a law for constituting a permanent and independent Criminal Investigation Service (CIS). The law is to make provisions for –

- establishing CIS comprising suitable personnel of various Police units at the initial stage.
- prescribing conditions of appointment and other matters relating to the service.
- amendment of the relevant laws, such as, the Code of Criminal Procedure 1898, the Police Act 1861, the Police Regulation of Bengal 1943, and other relevant laws which prescribe procedures for criminal investigations.

7.2 CIS will be completely separate from the police force. The members of this service will remain independent in carrying out their duties and exercising power. To ensure these aspects of the structure of CIS and the matters relating to the appointment, service conditions and control of the members of the CIS, their office accommodation, budget and related matters a separate regulatory framework will be put in place.

7.3 During the transitional period, members from the existing Police Department will be appointed on deputation and, later on, they may be absorbed in the CIS.

7.4 The members of the CIS will serve under the administrative control of the Home Ministry. However, to ensure that they can carry out their duties free from political influences, the law will provide that they cannot be removed from the service without the sanction of the Assistance to Justice Commission (please see 5.5., above)

8. Amendment of the constitutional provisions relating to the Judiciary: 23 articles to be amended and 2 articles to be added.

8.1 Amendments relating to the appointment of the Chief Justice and other Judges of the Supreme Court:

- **Article 48(3):** to be amended to the effect that the President shall not Act on the advice of the Prime Minister in the matter of appointment of the Chief Justice and other Judges of the Supreme Court.
- **Article 55(2):** to be amended to the effect that the executive authority of the Prime Minister does not include matters relating to appointment of the Chief Justice and other Judges of the Supreme Court, their discipline and removal and also matters relating to transfer, promotion, discipline and removal from service of the Judges of the subordinate Courts.
- **Article 94:** to be amended to the effect that the minimum number of Judges of the Appellate Division will be 7 (seven) including the Chief Justice and that, in fixing the number of Judges to be appointed to both the divisions, the President shall act in accordance with the advice of the Chief Justice.
- **Article 95:** to be amended to the effect that the senior-most Judge of the Appellate Division shall be appointed as the Chief Justice of Bangladesh.

8.2 Qualification for appointment of the Judges of the Supreme Court- Article 95 (1) to be amended to the following effect:

- An eligible candidate must belong to any one of the three Groups: a member of the Judicial Service, a practising Advocate of the High Court Division, a member of the Government Attorney Service (when established).
- Citizenship-Bangladeshi only.
- Minimum Age-48 years
- Experience- 15 years of practical experience in the respective profession (mere enrolment is not sufficient).

Supreme Court Judges Appointment Commission- Article 95A to be inserted in the Constitution for ensuring transparency, fairness and merit-based assessment in the appointment process.

8.3 For securing independence, impartiality and effectiveness of the Judiciary, specific institutional reforms have been proposed including establishment of Supreme Court Judges Appointment Commission, Supreme Court Secretariat, a permanent Government Attorney Service etc. and necessary amendments have been proposed in Part VI of the Constitution (Judiciary), some other related provisions of the constitution and also in the relevant subordinate legislation relating to the Judiciary.

8.4 Amendment to 23 articles of the existing constitution has been proposed. Those articles are: 48(3), 55(2), 56(3), 88, 94, 95, 95A (to be added), 96, 97, 98, 99, 100, 102, 104, 107, 108, 111, 112, 113, 114, 115, 116, 147, 152. In addition two new articles are to be inserted - 64A (Government Attorney Service) and 95A (Supreme Court Judges Appointment Commission).

9. Organizational Structure of the Subordinate Courts

- Increasing the number of judges of the subordinate courts, considering the number of pending cases and the population of the relevant territorial unit.
- Establishing separate commercial courts and dedicated commercial benches in the High Court Division.
- Making arrangements for a similar staff pattern, vehicles, and office apparatus for similar types of courts.
- Removing procedural complication in and obstructions to the creation of posts for the judges.
- Fixing the same criteria for appointment of staff of the same grade and following the same procedure.
- Judicial Service Commission should be involved in the appointment process for making recommendations for appointment of specified level of staff.

10. Financial Independence of the Judiciary

10.1 Budgetary allocation for the judiciary must be increased. For determining the required budget, including the budget for development works for the judiciary, the Supreme Court will constitute a committee (to be led by the Supreme Court) in which representatives from the

Executive will be included. The Supreme Court will independently spend the allocated budget with option to make adjustment in various budget heads.

10.2 Constituting a committee headed by the Chief Justice to recommend the salaries, privileges and other benefits of the Judges of the Supreme Court.

10.3 Making the Judicial Service Pay Commission a permanent body (for the Judges of the subordinate courts.)

11. Use of ICT in Judicial Proceedings

11.1 In the first phase-

- An e-judiciary project is to be launched and as part of that project the relevant laws are to be amended allowing application of ICT in specified matters in judicial proceedings.
- Starting e-filing of civil cases and achieving a target of e-filing in 20% of such cases.
- Encouraging e-filing by reducing court fees and ensuring speedy trials of those cases by giving priority to them.
- Alongside the existing manual system, e-payment of court fees, costs, fines, and other charges by the intending parties to be encouraged and allowed.
- Publishing information of all cases through an online cause list.
- Recording evidence, attendance of the parties and related matters to be completed by using e-technology.

11.2 In the second phase, expanding the use of ICT to 50% of all court cases.

11.3 In the third phase, expanding the use of ICT to 100% of all court cases.

12. Physical Infrastructure of Subordinate Courts

12.1 Undertaking a Feasibility Study Project to assess the necessity and feasibility of construction of buildings for the 37 Judgeship where new buildings have not been constructed. Based on the project recommendations, undertaking project for upward expansion of existing building where possible, and undertaking projects for construction of new buildings in other cases.

12.2 Undertaking construction works in the 23 districts under the project called ‘**Chief Judicial Magistrate Court Building Construction Project for 64 districts (CJM Building Project)**’ where construction works have not been started yet. Initiating land acquisition process in the 5 districts where land has not been acquired yet under that project.

12.3 Urgent construction works necessary for the following three units-

- Separate buildings in place of the dilapidated ones for 51 Chowki Courts located in 34 Upazilas (sub-districts) of 20 districts.
- 64 court rooms in the current location in 18 districts, where a single court room is shared by more than one Magistrate.
- 66 court rooms in the current location in 18 districts where single court room is shared by more than one Judge.

12.4 Undertaking projects for construction of separate court buildings for the Metropolitan Sessions Judgeship and Chief Metropolitan Magistracy with provision for *nezarat*, record room, copy room, *malkhana* (exhibit-room), and GRO section. Establishing separate judicial residential complexes at the district level for the judges.

12.5 Following facilities to be provided for litigant people and others -

- Information desk;
- Waiting areas with seating facilities for witnesses;
- Seating arrangement for detainees (male and female) in the court's custody room;
- Toilets and waiting areas suitable for women and children;
- Removing iron cages for the accused in courts, if there remains any.

12.6 Sufficient infrastructure with all necessary amenities for law-clerks.

12.7 Sufficient infrastructure with all necessary amenities for officers and staff of the proposed Attorney Service.

13. Court Management

Supreme Court

13.1 Increasing the number of Judges in the High Court Division. Similarly, increasing the number of Judges in the Appellate Division so that at least three 3 (three) benches may function regularly in that Division.

13.2 For making a case ready for hearing within a reasonable time, issuance and speedy service of notices are to be ensured. For that purpose, necessary arrangements are to be made with the postal department so that notices sent by registered post are served, and service reports are made within 30 days.

13.3 For avoiding wastage of working time of all concerned use of ICT in the following matters to be ensured-

- submission of online mention slips by Advocates;

- application of ICT in the process of registration of cases (as far as legally possible).

13.4 Formulating guidelines for constituting and reconstituting Benches. One of such guidelines should provide that in case of reconstitution of Benche(s) the concerned judge(s) is informed about the reconstitution well in advance so that s/he/they can take necessary steps about the part-heard matters or matters in which the judgement(s) is pending.

13.5 The current practice of the Judge-in-Chamber of the Appellate Division and the relevant provisions of the Appellate Division Rules should be reviewed in order to ensure that the decision of the High Court Division may be stayed only in very urgent and limited cases and that where stay order is issued, the matter is heard and disposed of afresh by a regular Bench of the Appellate Division in the shortest possible time; stay applications in other matters are to be disposed of by the regular Bench, instead of the Judge-in-Chamber. The counsel who represented a party in the High Court Division must be given prior notice before hearing a stay application, and the current requirement of filing caveat is to be abolished.

13.6 For ensuring online availability of the electronic copy of each order and judgment passed by the judges of the Supreme Court, the facility for using the existing web portal of the Supreme Court is to be expanded.

13.7 Ensuring the regular and effective functioning of the Monitoring Committee of the High Court Division.

13.8 Ensuring transparency in the process of enrolment of the Advocates for practising in the Appellate Division.

13.9 Publication of a manual in Bangla containing rules, instructions, etc. applicable to the proceedings of the Supreme Court.

Subordinate Courts

13.10.1 Ensuring the pronouncement of judicial orders and judgments in open courts and uploading copies thereof on the website by 6 pm on the day of pronouncement.

13.10.2 In 100% of criminal cases, the testimony of government employees (Investigating Officers, Doctors, Expert etc.) is to be taken online as per the Practice Direction of the Supreme Court dated 20.08.2023.

13.11.1 Amending the relevant sections of the Postal Act to ensure effective service of notices sent through registered post and report thereon.

13.11.2 Creating the posts of programmers and other IT personnel for every judicial establishment at district level and ensuring their appointment on merit.

13.12.1 Creating the post of Judicial Administrative Officer (JAO) at the district level for ensuring proper court management.

13.12.2 Digitizing all court registers.

13.13 For ensuring security within the court premises and execution of judicial orders within and outside the court premises. For this purpose, a specialized group of employees are to be engaged who may be called the Martial Service of the Court, as in the USA and other countries.

14. Reducing harassment of the litigants in the court premises

Reducing harassment of the litigants in the court premises resulting from improper conduct and actions of various actors, for example a) taking leave by the concerned judge without prior public notice, b) non-pronouncement of the next date of a judicial proceeding in open court in each case, c) stoppage of judicial proceeding due to observance of various days by various groups on working days, d) insufficient arrangement relating to surrender of an accused person or production of arrested accused during the vacation, e) boycott of Courts by Advocates, f) closure of court proceedings in case of the death of an individual Advocate, instead of fixing a particular date for commemorating the death of all Advocates expired during the year as is done in the Supreme Court etc.

15. Prevention of corruption in the judiciary

15.1 Code of Conduct applicable to the judges of the Supreme Court and subordinate courts are to be framed. Such code must contain clear provisions against corruption including a requirement of furnishing by each judge after every three years, the statement of his/her assets of and publication of the same on the Supreme Court website.

15.2 Similarly after every three years, the statement of assets of all the officers and employees of the Supreme Court and subordinate courts are to be furnished and published on the website of the respective Courts.

15.3 Setting up a complaint box in the Supreme Court for submitting to the Supreme Judicial Council written complaints against the Judges of the Supreme Court with regard to corruption and providing to the public a dedicated email address for sending such complaint by email.

15.4.1 Forming a standing Preliminary Investigation Committee consisting of three Judges of the Supreme Court for investigating into the allegations of corruption against the Judges of the subordinate courts. The committee, after primary investigation, will record its decision within three months of receipt of each complaint.

15.4.2 Setting up a complaint box in the Supreme Court for submitting to the said standing committee, written complaints against the judges of the subordinate court with regard to corruption and providing to the public a dedicated email address for sending such complaint by email.

15.4.3 Monitoring of the proceedings undertaken and decision given by the authorities at the district level with regard to allegations of corruption against the staff members of that court.

15.5 Setting up a complaint box in every Judgeship and Magistracy for submitting written complaints to the respective district authority against the support staff of that Judgeship and Magistracy with regard to corruption and further providing to the public a dedicated email address for sending such complaints by email.

15.6 Forming an Investigation Committee by the Bangladesh Bar Council at each district headquarters to receive and resolve complaints against the lawyers in respect of corruption.

15.7 Introducing an effective ‘Grievance Redress System’ to prevent corruption in the judiciary.

16. Legal Aid Program

16.1 Making a new law by substituting the existing Legal Aid Act, 2000 for effectively expanding the current Legal Aid Program to the upazila (sub-district) level and rural area and for inclusion of effective mediation process as part of the Legal Aid Program. (Draft law annexed).

16.2 For implementing the above noted scheme, upgradation of the existing National Legal Aid Services Organization by way of transforming the same into a Directorate General to be headed by a Director General and having functional link with the outlying offices and providing sufficient manpower.

17. Alternative Dispute Resolution

17.1 Framing detailed Rules prescribing the procedure to be followed in settling disputes through pre-case mediation and post-case mediation and the manner of payment of fees to the mediators. For the same purpose, functional directives are to be issued from time to time.

17.2 Amendments to the existing Arbitration Act, 2001, as was proposed by the Law Commission.

17.3.1 The various other laws containing provisions relating to arbitration as a method of alternative dispute resolution should be thoroughly examined and the dispute resolution

provisions of such other laws should be made consistent with the principal law of arbitration, namely, Arbitration Act 2001.

17.3.2 In making provisions for arbitration as indicated above, commercial arbitration should be encouraged.

17.3.3 Framing Rules under the Arbitration Act 2001 (as amended following the above proposal), in order to prescribe the procedure to be followed in arbitration proceedings.

17.4 Undertaking effective publicity programs in order to create awareness among the people about the benefit of alternative dispute resolution.

18. Reduction of backlog of cases

18.1.1 For reducing the backlog of cases, arrangements should be undertaken so that retired District Judges, may be appointed under section 49 of the Government Services Act, 2018 for a limited period under contract. Such judges may be assigned with the disposal of Criminal and Civil Appeal and Revision. In selecting the Judges under this scheme, the physical fitness, efficiency and reputation with regard to honesty must be considered.

18.1.2 For implementing the above noted proposal, amendments of the relevant laws will be necessary, namely, Specialized Court Act, 2003 and the Rules relating to Judicial Service.

18.2 Stopping the trial of criminal cases and taking final decision in accordance with Sections 249 and 265J of the Code of Criminal Procedure in cases where the trial has started but witnesses could not be produced for a long time.

18.3.1 Providing reasonable remuneration and other allowances to government law officers working at district level courts (PPs/GPs and others). In fixing such remuneration a Public Prosecutors and a Government Pleader should be treated as equal in rank with an Assistant Attorney General working in the Supreme Court.

18.3.2 The PPs and GPs should be provided with sufficient office accommodation on rental basis, if government accommodation is not available. They should also be provided with support staff.

18.4 For ensuring recording of evidence of witnesses in a relatively shorter time, the e-technology must be applied for recording their statement online as per the Practice Direction published by the Supreme Court vide Circular No. 490A dated 20 August 2023.

19. Village Courts

Village Courts Act is to be amended as follows

- The village court is to consist of 5 members instead of existing 3 and the Chairman of the Union Parishad shall be the head and each of the parties will select 2 members from a panel.
- Fixing minimum procedural standards to be followed.
- Village court to sit on specified dates and time.
- Supervision and monitoring of village court activities by a committee headed by the District Legal Aid Officer.

20. Mobile Courts

Amendment of the Mobile Courts Act, 2009 as follows:

- Subject to the decision of the Appellate Division in the pending cases regarding the constitutional validity of the Mobile Courts run by the Executive Magistrates, the existing power of those Magistrates should be reduced to imposition of fine only and thus imposition of the penalty of imprisonment by them should be omitted.
- Omission of the power of government to extend the jurisdiction of mobile courts under various other laws in the guise of statutory notification under section 15 of the Mobile Court Act,
- Expansion of jurisdiction of the Judicial Magistrates in the matters of offences triable by mobile courts.

21. Amendment of certain laws relating to trial

21.1.1 Enhancement of the quantum of fine in place of those fixed by the century old laws.

21.1.2. Empowering Judicial Magistrates to impose higher level of fines as penalty.

21.2.1 Allowing parties to a civil suit to adduce evidence by filing affidavit.

21.2.2 Introducing appropriate amendments to the provisions governing the pre-trial and post-trial stages of civil cases.

21.3 Making new laws for the speedy disposal of civil and criminal cases, effective implementation of court-decisions, protection of witnesses and victims, requirement of hearing on sentencing, framing and publication of sentencing guidelines and other relevant aspects.

22. Training of Judges and support staff

22.1 For training of Judges and support staff, establishment of a National Judicial Academy and setting up Judicial Training Institutes (as branches) at the regional level.

22.2 Establishing a Judicial Research and Training Institute to conduct research on judicial issues.

22.3 Creating a separate 'Policy Research and Reform Management Unit' under the Ministry of Law, Justice, and Parliamentary Affairs and also in the Supreme Court.

22.4 Making affiliation arrangements with renowned foreign universities and training institutions and undertaking programs for training, workshops, sharing experience etc. for judges.

22.5 Formulating policies for training on administration of justice. Developing policies for higher education of judges relating to law and justice.

23. Reforms in Legal Profession

23.1 Revising the existing syllabus for enrolment at the Bar and addition of laws that are often sought to be enforced through judicial process.

23.2 Establishment of a permanent training institute for the purpose of professional improvement of the enrolled Advocates.

23.3 Updating the 'Canons of Professional Conduct and Etiquette' from time to time to meet contemporary needs.

23.4 Amendment of Bangladesh Bar Council and Legal Practitioners Order, 1972, and the Rules made thereunder in order to- a) clarify the definition of professional misconduct of lawyers, b) to increase the number of permanent tribunals- at least 5 in Dhaka and at least one in each district outside Dhaka, c) amend the composition of the tribunal, so that it consists of a Judge as the chairman and two advocates as members.

23.5 Requiring a written agreement to determine lawyers' fees and providing a receipt to the client after each payment, under that agreement.

23.6 Making all Bar Associations free from political influence, so that they are not used as a tool to implement the objectives of political parties.

24. Reforms in Legal Education

24.1 Establishing a permanent and separate Legal Education Board under the Ministry of Education having power to formulate policies for ensuring quality legal education, to monitor and control the implementation of those policies and to develop these matters.

24.2.1 Introducing a system of centrally controlled admission test for Law (Honours) courses in all universities.

24.2.2 Modernizing the law education curriculum with emphasis on research, court visits, mootings, law clinics and other practical aspects.

24.2.3 Developing language skill of the students with emphasis on English.

24.3 Inclusion of appropriate writings on law and human rights in secondary classes (9-10th grade) and adding law as one of the subjects in higher secondary classes (11-12th grade).

25. Prevention of false and harassing cases

25.1 For preventing false, frivolous and vexatious cases (in all criminal courts) and specific legal provisions are to be made keeping in view of realities of the country and for that purpose intensive and comprehensive research and consultation with stakeholders are to be made.

25.2.1 Till making of the law recommended in para 25.1, a provision similar to Section 250 (Trial by Magistrate) should be inserted in Chapter 23 (Trial by Sessions Court) of the Code of Criminal Procedure.

25.2.2 Increasing the quantum of compensation and fine mentioned in Section 250 of the Code of Criminal Procedure.

25.3 Issuing instructions by the Ministry of Home Affairs to the effect that if the police suspects an element of falsehood or harassment in a case (as for example, unusual or excessive number of accused persons in consideration of the nature of allegation), the police shall not arrest an accused person unless there is specific allegation against him in the FIR.

25.4 Issuing instructions by the Ministry of Law to the Public Prosecutors that, if an accused is arrested by the police in a case suspected of containing element of falsehood or harassment, the public prosecutor or, as the case may be, the court inspector or court sub-inspector, will not oppose the bail of that accused in court.

25.5 Issuance of cautionary instruction by the Bar Council through all the bar Association to the effect that if a lawyer, whether individually or in a group prevents a judicial proceeding or creates obstruction thereto in any manner or threatens or pressurizes a Magistrate or a Judge, at any stage, for example at the initial stage of a case under section 200 of CrPC, or at the time of bail hearing or giving decision on a bail matter, concrete actions will be taken against such lawyer(s).

25.6.1 Issuance of instruction by the Ministry of Home Affairs to the effect that police shall -

- complete the investigation of all cases at the earliest;
- submit a final report in respect of the entire case where the case is false as a whole or accused persons are undetectable;

- in case of submission of a charge sheet, recommend therein exemption of innocent persons as not sent up.

25.7 Forming a high-powered Task Force in each administrative Division to supervise the activities mentioned in the above clauses to ensure that no real criminal is exempted from the case through collusion with the police.

26. Culture of Impunity

Innumerable crimes are being regularly committed but going unnoticed or being ignored or neglected. Since these offences remain out of the purview of judicial process, the victims do not get any remedy in respect of these crimes and the crimes continue to be repeated. The criminals concerned feel that they are above law and free from any liability. To overcome this situation, it is necessary to create among the public and other stakeholders awareness and then strictly enforce the law.

27. Keeping the court premises free from political activities

For keeping the court premises free from political activities and the consequential influence on the judicial process, necessary laws should be enacted to prohibit all types of meetings, gatherings or processions by lawyers or any other person, group or party in the court premises and to discourage lawyers from conducting active political activities in the court premises. The influence and control of political parties in the Bar Association elections should also be eliminated.

28. Improving social and moral values

Continuous decay in social and moral values is one of the main reasons for social degradation as a whole including the crime scenario. To overcome the situation it is necessary to take specific programs for improving the value system. To that end, chain of activities is to be undertaken so that improved moral values are taught and practiced in State activities, all sphere including family and the educational institution.